

LITHUANIA 2010

Introduction

Tax-benefit policy “country chapters” are made available as part of the OECD series *Benefits and Wages*. They provide detailed descriptions of tax and benefit rules in a consistent format across countries and summarize recent policy changes.

Country chapters for other countries and years are available on the Internet at www.oecd.org/els/social/workincentives.

1. Overview of the tax-benefit system

Lithuania has contributory unemployment insurance benefit for those out of work. Insurance is compulsory, except self-employed persons. Unemployment benefit is a monthly payment for persons who have made social security contributions and are out of work. The unemployed may receive a contributory unemployment insurance benefit which in most cases amounts to 40 per cent of previous earning. Generally, unemployed persons can receive unemployment insurance benefit for a maximum 9 months.

Social assistance is available for persons with limited means. There is a social assistance scheme which guarantees a minimum income for persons with limited means and is also available to working people with incomes below minimum income level. There are a number of provisions for low income families. The most important are social benefit and housing benefit. The family income and the property are the subject to examine the purpose of claims for the social benefit and housing benefit. Responsibility for administration of social benefit and housing benefit is shared with Government paying for the benefit cost and setting rules and the municipalities administering the program.

With regard to family benefits, the most important is child benefit for people with children. The income is not examined for the purposes of the child benefit, parental benefit, birth grant and funeral grant.

Earning related benefits are based on gross earnings. As concern social benefits, only insurance maternity benefit and sickness benefit are taxable. The direct tax system consists of a central government income tax; the tax unit for income tax is the individual; deductible items for dependent children under given income are administered.

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1.1. Average Worker wage (AW)

The preliminary average gross monthly earnings of employees (in full-time units) in business economy (B–N) for 2010 was equaled LTL 23 365.

2. Unemployment insurance

Unemployed person who are not more than 5 years below the age of old age pension the unemployment benefit shall be extended for 2 months.

2.1 Conditions for receipt

The right to unemployment insurance benefit is granted to a person aged 16 and over who has not reached the retirement age (60 years for women and 62.6 years for men) and who is registered in a local labour exchange office as unemployed.

The eligibility not depends on whether the job loss is “voluntary” or not.

2.1.1 Employment conditions

Employment conditions are as follows: to be fully unemployed, be able and available for work and is ready to participate in the measures of active labour market policy.

2.1.2 Contribution conditions

Social insurance contributions must have been made for at least 18 months in the last 36 months.

2.2 Calculation of benefit amount

2.2.1 Calculation of gross benefit

The unemployment benefit (unemployment social insurance benefit) comprises a fixed and a variable component.

The fixed component represents the State Supported Income. The variable component is linked with the former insured income of the unemployed and the Insured Income of the Current Year approved by the Government.

Insured income of the insured person are all incomes of an individual from which the unemployment insurance contributions were paid or had to be paid and also all the unemployment insurance benefits, sickness, maternity or maternity (paternity) benefits provided for in the laws related to social insurance and received by the insured person.

The variable component is calculated as follows:

- take the amount of the real insured income of an unemployed for every month during the previous 36 months passed starting from the end of the calendar quarter to the date of the unemployed registration at Labour exchange;
- divide each monthly insured income of the unemployed by the Insured Income of the relevant Current Year and calculate the average of these values;

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- multiply the calculated average by the Insured Income of the Current Year of the month when unemployment social benefit is to be allotted;
- take 40% of the calculated amount. It is a variable component of the benefit.

The full amount is paid during the first three months of unemployment. For the remaining months the variable component is reduced by 50%.

In July 2009 the State Supported Income consisted of LTL 350, which was the minimum monthly benefit.

The maximum amount of the unemployment insurance benefit could not exceed 70% of the Insured Income of the Current Year: in 2009 - LTL 1041.6 or EUR 301.7.

In July 2009, the annual Insured Income for 2009 consisted of LTL 1488.

For the period from 2010-01-01 till 2011-12-31 according to temporary law (Law on the Recalculated and Paid Social Benefits) minimum unemployment social insurance benefit consist of LTL 350, maximum unemployment social insurance benefit - LTL 650.

Since 2010-01-01 the annual Insured Income was reduced and consisted of LTL 1170.

2.2.2 *Income and earnings disregards for benefit recipients and those starting a new job*

Any income from work cancels entitlement to unemployment benefit. Unemployed people under retirement age received pension (with exception of survivor's, orphan's and loss breadwinner's pensions) or compensations for special working conditions, for lost capacity for work due to occupational accidents and occupational diseases shall be paid only the part of the unemployment insurance benefit which exceeds the sum of the received pensions or compensations.

2.3 *Tax treatment of benefit and interaction with other benefits*

Not taxable.

2.4 *Benefit duration and waiting periods*

The duration of payment of benefit depends on the length of the unemployment insurance record:

- less than 25 years – 6 months
- 25 - 30 years – 7 months
- 30 - 35 years – 8 months
- 35 years and over – 9 months

Qualifying period for unemployment insurance – the period during which the unemployment insurance contributions were paid or had to be paid and also the periods during which the insured person received the unemployment insurance benefits or social insurance sickness, vocational rehabilitation, maternity, paternity or maternity (paternity) benefits provided for in the laws related to social insurance.

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Unemployed person can re-apply for unemployment benefit after 12 month only one time.

2.5 Treatment of particular groups

2.5.1 Young persons

No special treatment.

2.5.2 Older workers

Unemployed person who are not more than 5 years below the age of old age pension the unemployment benefit shall be extended for 2 months.

2.5.3 Others if applicable

The unemployment benefit for women who during the period of payment of the benefit temporarily lost capacity for work due to pregnancy and childbirth shall be extended for the period corresponding to the period of payment of the maternity benefit.

3. Unemployment assistance

No special unemployment assistance.

4. Social assistance

The poor residents who are unable to obtain by themselves enough funds for living receive social benefit. This social assistance depends on the basis of income and property evaluation in Lithuania.

Payment rates, durations or aspects of means-testing do not depend on the ages of the claimant or his/her family members.

4.1 Conditions for receipt

Families (single residents) are entitled to social benefit if they comply with these conditions:

- the value of the property does not exceed the ratio of fixed property value;
- the average income of a family (single resident) during the period of three months preceding the month when the family (single resident) acquired the right to social benefit is lower than state supported income per family (single resident);
- family members (single residents) over 18 years of age are employed and during the period of three months the income of which has to be calculated, worked no less than two thirds of the duration of working time established in the Labour Code, or work part-time in the cases specified in the Labour Code, and the amount of pay is calculated for them to make not less than a minimum monthly pay or minimum hourly consideration in proportion to the time of work or by result; the amount of pay calculated per family member (single resident) who worked not less than a calendar month from the commencement of employment is not less than a minimum monthly pay or a minimum hourly consideration in proportion to the time of work or by result;
- family members (single residents) over 18 years of age: full-time pupils and students of general education schools and other institutions of formal education under 24 years of age; for

the period from the day of finishing general education schools which they attended as full-time pupils until 1 September of the same year, but not longer than until they reach the age of 24; are of the retirement age set by the law or receive pensions (except the State social insurance disability pension granted to a person who loss of capacity to work of 45-55% (before 1 July 2005, were recognised as persons with Group III disability), pension benefits or social assistance benefits; are persons who loss of capacity to work of 60-70% or of 75-100% (before 1 July 2005, were recognised as persons with Group II or I disability); are the unemployed receiving unemployment social assistance benefit, education grant during the period of studying or doing public works or works supported by the Employment Fund, as well as upon the end of the said periods; are the persons who have registered with the state territorial labour exchange for at least six months; are the persons who have not more than five years left until the retirement age, have registered with the state territorial labour exchange and receiving unemployment social insurance benefit; one of the family members is nursing a family member, a child placed under guardianship in accordance with the procedure established by the law or a next of kin of such family member or his (her) spouse for whom the necessity of permanent nursing (assistance, care) has been established in the manner prescribed by legal acts; are undergoing treatment in a in-patient health care institution for at least a month; a woman is pregnant and less than 70 calendar days are left before a baby is due (28 or more weeks of pregnancy);

- a mother or a father (a guardian or a curator) raises at home: a child under 3 years of age who does not attend a pre-school educational establishment; at least one child not older than 8 years of age who does not attend a pre-school educational establishment or a school where the family raises 3 and more children under 14 years of age and when proper care is taken of them; a child of the pre-school age but not older than 8 years of age who does not attend a pre-school educational establishment due to doctor's recommendation or because there is no pre-school educational establishment in the place of residence, or there are no vacancies in it;
- children between 16 and 18 years of age: work (requirements laid down in subparagraph 3 of this paragraph do not apply); attend institutions of formal education; for the period from the day of finishing institutions of formal education until 1 September of the same year; are invalids or disabled in the manner prescribed by the law; have registered with the state territorial labour exchange; are pregnant women.

Families of the divorced or separated spouses who raise children under 18 years of age are entitled to social benefit if they have concluded a court-approved contract for the maintenance of a child (children) or the maintenance of a child (children) has been ordered by the court.

The families of the persons who are not married, are lone parents of children under 18 years of age shall be granted social benefit:

- if their child's (children's) paternity has been ascertained or established and the court has order maintenance for the child (children);
- where there is no possibility to identify the father (mother) of the child in the manner prescribed by law or the court cannot adjudge maintenance of the child to his father (mother);
- during the proceedings of a case relating to the establishment of paternity and (or) ordering of maintenance.

If these families have not concluded a court-approved contract on maintenance of a child (children) or the court has not ordered maintenance of a child (children), as well as if paternity is

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not ascertained or established for the child (children) and the court has not ordered maintenance for the child (children), social benefit shall be granted only to such child (children).

The right to receive the mean tested social benefit depended not on the type of income, but on the level of income and property.

4.2 *Calculation of benefit amount*

Families and single permanent residents of the Republic of Lithuania who receive per capita income not higher than the level of the State Supported Income established by the Government are entitled to a social benefit.

Since 2009 when granting social benefits to a family (single resident), the income of a family (single resident) shall not include the received **child benefit**.

State Supported Income – from 2008-01-01 till 2008-08-01 was LTL 285 (EUR 82.5) per person per month (from 2008-08-01 is LTL 350 [EUR 101]).

From 2010-01-01 State Supported Income is remained unchanged (**LTL 350 [EUR 101]**).

4.2.1 *Calculation of gross benefit*

The social benefit shall make 90% of the difference between the amount of State Supported Income per family (single resident) and the average monthly income per family (single residents).

State Supported Income are adjusted at irregular intervals according to governmental decision.

All income (net income, pensions, periodical State benefits etc.) are taken into account with the exception of inter alia Social Benefit, extraordinary grants, special social allowances.

The monthly social benefit is 90 percent of the difference between the amount of State Supported Income per family (single resident) and the average monthly actual income per family (single residents).

The Family actual income (net income: wages (except wages of pupils studying at general education schools and vocational institutions according to general education or vocational training curricula), pensions, child benefit, benefit to a conscript's, unemployment benefit, alimony, income from farming, etc) is taken into account when calculating Social Benefit.

4.2.1.1 *Irregular additional payments*

Pupils who study according to general education (primary, basic, secondary or special education) curricula or pre-school curricula shall be entitled to provision of school supplies for pupils if the average monthly income per family member is lower than the amount of 1.5 State Supported Income LTL 525. The amount of this benefit is 120 % of the Basic Social Benefit LTL 156 (EUR 45.2).

2010-01-01 Basic Social Benefit is unchanged and equaled LTL 130 per month.

4.2.1.2 *Obligations of family members*

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Families or single residents shall be entitled to social benefit if family members (single residents) over 18 years of age are employed and during the period of three months the income of which has to be calculated, worked no less than two thirds of the duration of working time established in the Labour Code or family members (single residents) are the unemployed receiving Unemployed Insurance Benefits or are the unemployed and who are registered at a local office of Lithuanian Labour Exchange as the job-seekers no less than 6 month.

The benefit claimant mustn't be actively searching for job in order to receive the social assistance. Social benefit amounts do not depend on the situation, whether other family's members are registered as a job-seekers and are genuinely labour-market 'inactive'.

Families (single residents) shall be entitled to social benefit if they comply with the conditions referred in legal acts.

4.2.2 Income and earnings disregards for benefit recipients and those starting a new job.

None.

4.3 Tax treatment of benefit and interaction with other benefits

Social Benefit is not subject to taxation.

Since 2009 when granting social benefits to a family (single resident), the income of a family (single resident) shall not include the received **child benefit**.

The family have the right to receive the social benefit if unemployed family member received the unemployment insurance benefit, in other case, the family have right to receive the social benefit after 6 month unemployed family member is as register as a job-seeker

4.4 Benefit duration and waiting periods

The benefit duration granted for three months. The social benefit may be renewed (unlimited number of renewals) if the circumstances have not changed.

4.5 Treatment of particular group

No specific supplements.

4.5.1 Young persons

4.5.2 Older workers

4.5.3 Others if applicable

5. Housing benefits for rented accommodation

This support is means-tested and could be used to cover expenses for the house heating, cold and hot running water.

5.1 Conditions for receipt

Families (single residents) are entitled to compensations if they comply with these conditions:

- the value of the property does not exceed the ratio of fixed property value;
- heating costs of the useful floor space of a dwelling, but not exceeding the ratio established in the Law, exceed 20% of the difference between the income of a family (single residents) and the State Supported Income per family or single residents;
- costs of the factual quantity of cold water and sewage, but not exceeding the ratio established in the Law, exceed 2% of the income of a family or single residents;
- costs of the factual quantity of hot water and sewage, but not exceeding the ratio established in the Law, when the centralized heating supply system is used to produce hot water, or costs of other energy or fuel used to produce the standard quantity of hot water as fixed in the Law exceed 5% of the income of a family or single residents.
- persons over 18 years of age are employed and during the period the income for which is being calculated, worked no less than two thirds of the maximum duration of working time (including temporary incapacity for work, idle time through no fault of an employee, annual leave and other periods of time when an employee did not work because of valid reasons, but was paid in accordance with the procedure laid down by the law) fixed in the Labour Code, or work part-time in the cases specified in the Labour Code, and the amount of pay is calculated for them to make not less than a minimum monthly pay or minimum hourly consideration in proportion to the time of work or by result;
- persons attend general education schools and other institutions of formal education until they reach the age of 24 and for the period from the day of finishing general education schools which they attended as full-time pupils until 1 September of the same year, but not longer than until they reach the age of 24;
- persons are of the retirement age or receive pensions of any type, pension benefits and/or social assistance benefits, except the pensions granted upon the loss of 45-55% of capacity to work (pensions granted to the persons who, before 1 July 2005, were recognised as persons with Group III disability) as well as survivor's pension or orphan's pension;
- persons are the unemployed receiving unemployment social assistance benefit, education grant during the period of studying or doing public works or works supported by the Employment Fund.
- persons have registered with the territorial labour exchange for at least six months;
- a single resident or one of the family members is nursing a child (children) placed under guardianship (curatorship) in the family according to the procedure established by the law, a family member (members), his next of kin or a next of kin of the spouse, if they are paid target compensations for nursing or attendance (assistance) expenses or they are declared legally incapable;
- a person is undergoing treatment in an in-patient health care institution for at least a month or has a sick leave for at least one month;
- a woman is pregnant and 70 calendar days are left before a baby is due;
- persons registered with the territorial labour exchange, with less than 5 years left until they reach the pensionable age;
- persons have registered with the territorial labour exchange not later than within 6 months from the appearance of the circumstances specified in this subparagraph: school-leavers and graduates who attended institutions of formal education on a full-time basis; persons who lost 45-55% of capacity to work (persons with Group III disability); persons to whom a level of disability or capacity to work has been established after the expiration of the term of an established level of

disability or capacity to work; a mother (a father) or a guardian when a child raised by him reaches the age of 3 years; persons who worked under a temporary or supply of services (no less than 1 month), fixed-term, seasonal employment contract – upon the expiration of this contract; persons who nursed a family member, a child placed under guardianship (curatorship) in the family according to the procedure established by the law, or their next of kin or a next of kin of their spouse for whom the necessity of constant nursing (attendance, assistance) was established or they have been declared legally incapable; persons who returned from places of imprisonment;

- a mother (a father) or a guardian raises at home: a child under 3 years of age who does not attend an educational establishment; at least one child not older than 8 years of age who does not attend an educational establishment when the family raises 3 and more children under 14 years of age; a child under 8 years of age who does not attend an educational establishment due to doctor's recommendation or because there are no vacancies in pre-school educational establishments or a family lives in the rural area at a distance of more than three kilometres from a pre-school educational establishment;
- a mother or a father, in the absence of one of them or he (she) cannot take care of a child (children) because of illness, disability, imprisonment or other important reasons, raises at home a child (children) under 14 years of age and cultivates not less than 2 hectares of agricultural land which belong to the family by the right of ownership or are leased;
- a children between 16 and 18 years of age: study; work; have registered with the territorial labour exchange; disability is established according to the procedure laid down by the law; during pregnancy.

Housing benefits shall not be granted to a family member or a single resident, if he:

- is maintained constantly or during workdays (provided with lodging and food for free) in an establishment financed by the State or a municipality;
- is a pupil or a student under 24 years of age studying and living in a foreign country;
- is serving a sentence, detained or arrested, search for him is announced or declared to be missing;
- does a mandatory initial military service;
- does not possess a permit for permanent residence in the Republic of Lithuania, if he must possess such a permit according to effective legal acts.

If a family has not concluded a court-approved contract on maintenance of a child or has not appealed to the court with respect to establishment of maintenance and/or acknowledgement of paternity, or appealed but paternity has not been acknowledged and/or maintenance has not been established, such family shall be entitled to reimbursements and only a child (children) shall be entitled to a social benefit.

If two or more families and/or single residents have declared their place of residence in one dwelling and paying for public utilities according to a single account (a single pay book), but at least one of the families (single resident) is not entitled to reimbursements, none of these families and single residents shall be entitled to such reimbursements.

5.2 Calculation of benefit amount

5.2.1 Calculation of gross benefit

Families or single residents shall be entitled to the following compensations:

- during the heating season – part of the expenses for heating of the useful floor space of a dwelling, but not exceeding the ratio set in the Law, taking into account the consumption of energy or fuel, exceeding 20% of the difference between the income of a family or single resident and the state supported income per family or single resident;
- part of the costs of the factual quantity of cold water and sewage, but not exceeding the ratio set in the Law, exceeding 2% of the income of a family or single resident;
- part of the costs related to the factual quantity used to produce hot water, but not exceeding the ratio set in the Law, exceeding 5% of the income of the family or single resident. The costs related to the production of hot water shall include the consumption of energy or fuel to heat water, not exceeding the set ratio, and the consumption of energy or fuel, attributed to a dwelling, to maintain the temperature of hot water (circulation). When hot water is produced by using centralized heat supply, costs related to the production of hot water shall also cover the costs of cold water used to produce hot water (including the costs of sewage).
- The following ratios shall apply in calculating compensations:
- the useful floor space ratio per family: 38 square meters for one of the family members or single residents who have declared the place of residence in a dwelling, 12 square meters for every additional family member. These ratios shall be set on the basis of cadastral measurement data;
- hot water and sewage – 1.5 cubic meter for a family member or single resident per month;
- cold water and sewage – 2 cubic meters for a family member or single resident per month, when centralized heating supply system is used to produce hot water, or 3.5 cubic meters for a family member or single resident per month, when other types of energy or fuel are used to produce hot water.

5.2.2 *Income and earnings disregards*

None.

5.2.3 *Costs eligible for housing benefits*

5.3 *Tax treatment of benefit and interaction with other benefits*

Compensations are not subject to taxation.

5.4 *Treatment of particular groups*

5.4.1 *Young persons*

5.4.2 *Older workers*

5.4.3 *Others if applicable*

Cash benefit for utility expenses in the amount of 20% BSB (LTL 130 or EUR 37.7) per month for disabled parents raising children under 18 years of age (24 years of age if in full-time education), if there are no members of the family capable of work.

6. Family benefits

Families with children are receiving state assistance, ensuring support for every child from the birth until the age of majority. This assistance is provided from the State budget, irrespective of the family income and irrespective of whether the person is insured with the state social insurance or not.

The following types of benefits are set in the Republic of Lithuania:

1. Benefits to children raised in families:

- birth grant;
- adoption grant;
- child benefit;
- benefit to a conscript's child.

2. Benefits to children under guardianship and persons for whom guardianship (curatorship) is determined:

- guardianship (curatorship) benefit;
- settlement grant.

3. Pregnancy grant.

4. Funeral grant.

6.1 Conditions for receipt

Birth grant

Each born child is entitled to a birth grant the amount is equal to 11 values of BSB - LTL 1,430 or EUR 414. On the birth of twins or triplets the birth grant is doubled or tripled, thus it means that each born child is eligible to get a birth grant. Birth grant is paid to one of the parents raising a child (or to one of the available parents) (adoptive parents) or a guardian of a child.

Adoption grant

For every adopted child, irrespective whether the birth grant was paid or not, the family is eligible to get an adoption grant the amount which is equal to 11 values of BSB – LTL 1,430 or EUR 414. Thus, adopting family gets both grants: birth grant and adoption grant.

Child benefit

For the period from 2010-01-01 till 2011-12-31 according to the temporary law (Law on the Recalculated and Paid Social Benefits):

For those raising (fostering) one or two children:

- Every child, raised in a family or placed under guardianship in a foster family aged 0-2 years, if Maternity/Paternity benefit is not paid to the parent or guardian, or if the amount

of Maternity/Paternity benefit is less than 1.5 times the amount of the SSI (LTL 525 (€ 152)), receives a monthly benefit of 0.75 BSB (LTL 97,5).

- Every child raised in a family or placed under guardianship in a foster family aged 2-7 years, receives a monthly benefit of 0.4 BSB (LTL 52), if the monthly net income per family member is less than 1,5 times the amount of the SSI (LTL 525).

For those raising (fostering) three and more children:

- Every child, raised in a family or placed under guardianship in a foster family aged 0-2 years, if Maternity/Paternity is not paid to the parent or guardian, or if the amount of Maternity/Paternity benefit is less than 1.5 times the amount of the SSI (LTL 525), receives a monthly benefit of 0.75 BSB (LTL 97,5).
- Every child raised in a family or placed under guardianship in a foster family aged 2-18 years, receives a monthly benefit of 0.4 BSB (LTL 52), if the monthly net income per family member is less than 1,5 times the amount of the SSI (LTL 525).

Net income means: gross earnings after deductions of taxes and social contributions, social benefits, alimony.

Benefit to a conscript's child

Each child of conscript is entitled to a monthly benefit is equal to 1.5 BSB (LTL 195 or EUR 56.5) during the service of his/her father. The benefit to a child of a military serviceman is paid to the mother of a child. In case if a mother raising a child is not a permanent citizen of the Republic of Lithuania, a benefit is paid to a child's father.

Guardianship benefit (assistance to children who lost parental care)

For a child raised **in foster family or non-governmental foster care facility** for children:

- during the foster care period, every child receives a monthly foster care benefit of 4 Basic Social Benefit (BSB) (LTL 520);
- if a child in foster care is supported (receives free lodging and meal) in the dormitory of the general education school (centre) or vocational school (vocational training centre), he receives a monthly benefit of 2 BSB (LTL 260).

For a child raised **in foster family home** for children:

- during the foster care period, every child receives a monthly foster care benefit of 8 BSB (LTL 1040);
- if a child in foster care is supported (receives free lodging and meal) in the dormitory of the general education school (centre) or vocational school (vocational training centre), he receives a monthly benefit of 2 BSB (LTL 260).

For a child placed under guardianship in the foster family, foster family home, non-governmental, state or monicipal child care institution:

- 0,75 BSB (LTL 97,5) for each child 0-3 years;

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- 0,4 BSB (LTL 52) for each child 3-18 years (and older who study according to the general education curricula, but not longer the 21 years).

Upon expiry of the foster care due to majority, emancipation or marriage, an individual:

- receives a lump-sum benefit of 75 BSB (LTL 9750) to acquire or accommodate housing.
- receives a monthly foster care benefit of 4 BSB (LTL 520) if the individual continues uninterrupted education at the general education school, vocational, high or higher school as a full time student (including the period of academic leave), notwithstanding if he works or not, as well as in the cases when both parents (the only parent (foster parent)) of an unemployed major are dead. The benefit is paid to such individual until he is 24.
- if an individual is supported (receives free lodging and meal) in the dormitory of the general education school (centre) or vocational school (vocational training centre), he receives a monthly benefit of 2 BSB (LTL 260).

Sickness benefit

Individuals covered by the sickness and maternity social insurance are entitled to receive the sickness benefit.

The benefit is granted if:

- temporary incapacity for work is caused by:
 - disease or injury, except for the cases where the sickness benefit is granted for accidents at work or occupational diseases recognised as insured events;- outbreak and epidemic of contagious diseases;
 - child care if the mode for stopping the spread of infections is imposed in child care facilities;
 - sickness of a family member when he needs nursing;
 - treatment at prosthetic and/or orthopedic in-patient facility resulting in the loss of some of the income from work;

before the day on which temporary incapacity for work was established, the insured has the social insurance period for sickness and maternity of at least 3 months in the last 12 months or 6 months in the last 24 months.

The sickness benefit for the first 2 calendar days of sickness overlapping with the work schedule of an employee (except for the benefit for nursing a family member) is covered by the employer. The sickness benefit covered by the employer may not be lower than 80% and higher than 100% of the average salary of the beneficiary calculated according to the procedure established by the Government.

Since 2010 the amount of a sickness allowance paid with the State Social Insurance Fund resources shall make up **40 per** cent of the reimbursed remuneration of the allowance beneficiary from the third day through the seventh day of the temporary incapacity for work, and 80 per cent of the said

remuneration starting from the eighth day of the temporary incapacity for work.

The amount of a sickness allowance paid with the State Social Insurance Fund resources shall make up 85 per cent of the reimbursed remuneration of the allowance beneficiary for nursing a sick family member or looking after a sick child.

Settlement grant

Upon the expiration of the foster care due to attaining the majority, emancipation or contracting a marriage the person is granted a settlement grant amounting to 50 BSB (LTL 6.500 or EUR 1884). The grant may be used to acquire a dwelling or to redeem part of the loan for the acquisition, or building of a dwelling (dwelling-house, apartment), to pay utility charges for a rented or owned dwelling, to repair or renovate a dwelling, to purchase furniture and domestic appliances, or to acquire a PC, to pay tuition charges or to purchase a plot of land.

Pregnancy grant.

A pregnant unemployed woman, who is not eligible for a maternity allowance, shall be granted a lump-sum pay in the amount of 2 BSB (LTL 260 or EUR 75.3) 70 days before a baby is due. This benefit is paid from the State budget irrespective of whether the person is covered by state social insurance or not.

Funeral grant

When a permanent resident of Lithuania dies or when a stillborn baby is born, the person taking care of the funeral receives the funeral benefit in the amount of 8 BSB (LTL 1040 or EUR 300).

Maternity benefit

Women covered by sickness and maternity social insurance are entitled to receive maternity benefit for the period of pregnancy and delivery if:

- they are covered by sickness and maternity social insurance;
- they were granted pregnancy and delivery leave according to the procedure established in the laws;
- before the first day of pregnancy and delivery leave they have the social insurance period for sickness and maternity of at least 3 months in the last 12 months or 6 months in the last 24 months. As of 1 July 2009, the required social insurance period for sickness and maternity is at least 9 months in the last 24 months; and as of 1 October 2009, it is at least 12 months in the last 24 months.

A woman dismissed from work during pregnancy or pregnancy and delivery leave as a result of liquidation or bankruptcy of a company (institution, organisation, etc.) as well as upon expiry of

the fixed-term employment contract or the term of appointment to the position or the term of authorisation receives the maternity benefit according to the same procedure as used for the employed women on the pregnancy and delivery leave.

The benefit for women, who gave birth after 30 weeks of pregnancy and later, is paid for 126 calendar days. In cases of difficult delivery and birth of more than one child, the benefit is paid for additional 14 calendar days.

The benefit for women, who gave birth during the 22–27th week of pregnancy, is paid for 28 calendar days after the delivery. The benefit for women, who gave birth during the 28–30th week of pregnancy, is paid for 56 calendar days after the delivery. The benefit for women, who gave birth during the 22–30th week of pregnancy, is paid for 28 calendar days after the delivery.

The amount of the maternity benefit is equal to 100% of the reimbursed salary of the beneficiary. During the month, this benefit may not be lower than one quarter of the insured income of the current year valid during the month in which the pregnancy and delivery leave was granted.

Maternity (paternity) benefit

One of the parents (adoptive parents) or a foster parent covered by the sickness and maternity social insurance is entitled to the paternity benefit if:

- he is covered by sickness and maternity social insurance;

- he was granted, according to the procedure laid down in the laws, the child care leave until the child is one-year old;

- in the last 24 months before the first day of the child care leave, he has the social insurance period for sickness and maternity of at least 7 months. As of 1 July 2009, the required social insurance period for sickness and maternity is at least 9 months in the last 24 months; and as of 1 October 2009, it is at least 12 months in the last 24 months.

When a woman receiving the paternity benefit is granted the pregnancy and delivery leave and she becomes entitled to receive the maternity benefit during the pregnancy and maternity leave, she is paid the higher of the benefits or the benefit of her choice.

If a mother did not receive the maternity benefit during the pregnancy and delivery leave, the maternity (paternity) benefit is granted to other individuals entitled to the benefit from the day of birth of the child.

If a mother who received the maternity benefit during the pregnancy and delivery leave dies, the maternity (paternity) benefit is granted to other individuals entitled to the benefit from the day of death of the mother.

The maternity (paternity) benefit is paid during the child care leave until the child is one-year old but not sooner than from the end of the pregnancy and delivery leave until the child is one-year old (including the birthday of the child).

The amount of the maternity (paternity) benefit is equal to 100% of the reimbursed salary of the beneficiary from the end of pregnancy and delivery leave until the child is one year old, and 85% until the child is two years old. In case of multiple births, the amount of the maternity (paternity) benefit is increased depending on the number of children born at a time (in case of twins – two benefits, triplet – three benefits, etc.)

From 2010-07-01. The amount of a maternity (paternity) allowance from the end of a maternity leave until the child turns 1 year old shall make up 90 per cent, and until the child turns 2 years old – 75 per cent of the allowance beneficiary's reimbursed remuneration. Reimbursed remuneration for calculation of allowances may not exceed the sum of the fivefold amount of the insured income approved by the Government for the current year, which was valid in the month of acquisition of the entitlement to an appropriate allowance.

The benefit is granted if application is filed within 6 months from the end of the child care leave until the child is one-year old and is paid for not more than the last 12 months calculating from the application date.

Paternity benefit

Father covered by the sickness and maternity social insurance is entitled to the paternity benefit if:

- he is covered by sickness and maternity social insurance;
- he was granted, according to the procedure laid down in the laws, parental leave until the child is one month old;
- in the last 24 months before the first day of parental leave he has the social insurance period for sickness and maternity of at least 7 months; as of 1 July 2009 – at least 9 months; as of 1 October 2009 – at least 12 months;
- he has acknowledged paternity.

Paternity Benefit is paid maximum 1 month from the date of childbirth.

The amount of the paternity benefit is equal to 100% of the reimbursed salary of the beneficiary. The benefit must not be lower than 1/3 of the average insured income of the current year.

Child Support Fund is existed since 2007. The support can be paid to child who, under the decision of the Court does not receive all or part of the support awarded by the child's father (the parents). The benefit is paid once a month and is no more than 1.5 BSA (BSA equals to LTL 130).

Child - residing in Lithuania under the age of 18 years old, as well as over 18 years of incapacitated person before the age of 18, was established disability (disability), which more than one month does not receive the court order or court-approved child (children) the maintenance contract maintenance, or has received only part of the maintenance of one or both parents.

6.2 Calculation of benefit amount

None

6.2.1 Calculation of gross benefit

6.2.1.1 Irregular additional payments

6.2.2 Income and earnings disregards

6.3 Tax treatment of benefit and interaction with other benefits

Family benefits are not subject to taxation.

Child benefit and benefit to a conscript's child are taken into account when calculating income of a family or single resident to get social assistance and housing benefits.

6.4 Treatment of particular groups

The same family benefits for all groups.

6.4.1 Young persons

6.4.2 Older workers

6.4.3 Others if applicable

7. Childcare for pre-school children

The purpose of the pre-school education is to help a child to satisfy inherent cultural (including ethnic), social and cognitive needs.

The pre-school education takes place in the family; or is provided, upon the request of the parents (foster parents) or the recommendation of institutions responsible for the protection of children's rights, according to a pre-school curriculum.

The pre-school education is provided to children from the age of 1 to 5 (or 6).

The pre-school curriculum is implemented by nurseries, nursery-kindergartens, kindergartens, kindergarten-schools and other schools, freelance teachers or other education providers.

Families raising pre-school children at home receive educational assistance according to a procedure established by the Government or its authorized institution.

The founder of the pre-school determines the fees for children attending pre-school curriculum groups. As usual the fees are paid by parents and amount to 100-120 LT per month. Meals expenditures account for 80-100 per cent of these fees. Additionally parents pay fees for teaching aids which make up for about 10-15 LT per month. The fee is reduced by 50 per cent if:

- a family is raising three and more children;
- one of the parents (or a lone parent) (adopters) is raising a child (children);
- a child is of a conscript;

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- a father or a mother raising a child is a student or a learner of daily courses.

Municipal councils of towns and counties which are the founders of pre-school institutions have the right to set additional fees privileges, taking into account the income status of parents, child's health, etc.

7.1 Out-of-pocket childcare fees paid by parents

7.2 Child-care benefits

7.2.1 Conditions for receipt

7.2.2 Calculation of benefit amount

7.2.2.1 Calculation of gross benefit

7.2.2.2 Income and earnings disregards

7.2.3 Tax treatment of benefit and interaction with other benefits

7.2.4 Treatment of particular groups

Social support for pupils

Social support is provided for the children from low-income families studying at general education schools, vocational schools, pre-school education establishments and other establishments designed to educate children (libraries, cultural centres, etc.) (hereinafter referred to as a "school") according to general education (primary, basic, secondary or special) or pre-school curricula, with the exception of curricula for adults. Social support is not provided for the children studying according to both general education and vocational training curricula as well as the children maintained (receiving free of charge accommodation and meals) by the agencies financed from the State or a municipality or paid a guardianship (custody) benefit in accordance with the procedure laid down by laws.

There are two types of social support for pupils:

- free meals for pupils:

-lunch;

-breakfast;

-meals in full-day summer camps as organised by schools.

- provision of pupils with pupil's supplies prior to the beginning of a new school year.

All schoolchildren who study according to primary curricula or pre-school curricula

have the right to free meals (lunch).

Other pupils, depending a family's income, have the right:

1. to free lunch, if monthly income per family member is lower than the amount of 1,5 State-supported income (SSI) (LTL 525);
2. provision with pupil's supplies, if monthly income per family member is less than the amount of 1,5 SSI (LTL 525);
3. to free breakfast, if monthly income per family member is less than the amount of 1 SSI (LTL 350) .

Taking into account the living conditions of families, pupils may be provided social assistance also in other cases specified by a municipality which takes a decision on the allocation of social assistance to pupils:

1. the pupils may be provided with free lunch, if monthly income per family member is less than the amount of 2 SSI (LTL 700);
2. the pupils may be provided with free lunch and breakfast, if monthly income per family member is less than the amount of 1,5 SSI (LTL 525).

The pupils who were provided with free meals during the last month of a school year may also be provided with free meals in the full-day summer camps as organised during summer holidays by schools.

Determination of prices of one day of pupils' free meals:

to determine prices of one day of pupils' free meals, an amount of funds not less than the following amounts is allocated for the purchase of products (including purchase value added tax):

1. from 2,6 per cent to 3,6 per cen of the amount of the Basic Social Benefit (hereinafter referred to as "BSB") (LTL 3,38-4,68) for lunch;
2. 1,2 per cent to 2 per cent of the amount of the BSB (LTL 1,56-2,6) for breakfast;
3. 6 per cent to 7 per cent of the amount of the BSB (LTL 7.8-9.1) for meals in the full-day summer camps as organised by schools.

The price of sets of pupil's supplies (including purchase value added tax) – 120 per cent of the amount of BSB (LTL 156) per pupil during a calendar year.

Sets of pupil's supplies for pupils from social rick families are formed for each pupils according to his individual needs, taking account of the number of pupils in a family and the pupil's supplies already available to them.

Pupils are provided free meals:

1. from the beginning of a school year until the end of a school year;
2. upon submission of an application (request) during a school year – from the next day following receipt at a school of information about a decision taken until the end of a school year;
3. in the full-day summer camps organised by schools during summer holidays, provided during the last month of a school year a pupil had the right to receive

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free meals.

8. Employment-conditional benefits

None

9. Lone-parent benefits

None

10. Tax system

Earning related benefits are based on gross earnings. As concern social benefits, only insurance maternity benefit and sickness benefit are taxable.

State social insurance contributions for each insured person shall be calculated on the basis of wages calculated for each such person, which cannot be less than the minimum monthly wage, benefits of reimbursement and promotional character related to employment relations of such a person, as provided for in respective legal acts and collective agreements, regardless of payment sources. In fixing the minimum income amount, out of which contributions are payable, the minimum monthly wage or minimum hourly rate (depending on working hours accounting system applicable to each specific employee) as approved by the Government of the Republic of Lithuania shall be taken as a basis.

10.1 Income tax

For the purposes of the individual income tax, a distinction between taxable persons is made according to their residence. Residents are subject to income tax on their worldwide income, whilst non-residents are taxed on income from Lithuanian sources only.

For individual income tax purposes, the concept of “income” is understood as any remuneration received for the work performed, services provided, rights transferred or granted, property or means sold, or otherwise transferred or invested, as well as any other benefit in cash or in kind.

10.1.1 Tax allowances and credits

The taxable income shall be calculated by deducting from all income earned during the taxable period:

- tax-exempt income enlisted in the Law;
- income, derived from activity, performed with a business certificate;
- allowable deductions, related to an income derived from individual activity;
- an acquisition price of property, which has been sold or alienated, if the property is not related to individual activity; the expenses, connected with such property’s sale or alienation shall also be deducted;
- basic personal allowance and additional personal allowance;
- deductible expenses enlisted in the Law incurred by the resident.

10.1.1.1 Standard allowances

A resident of Lithuania calculating income tax for the tax period may deduct the following expenses from his income:

- life insurance contributions paid for his own benefit or for the benefit of his spouse or minor children (adopted children) or disabled children (adopted children), rated as requiring permanent special nursing care, under life insurance contracts which provide for an insurance payout not only upon the occurrence of an insurance event, but also upon the expiry of the term of the insurance contract;
- pension contributions paid for his own benefit or for the benefit of his spouse or disabled children (adopted children)), rated as requiring permanent special nursing care, to pension funds;
- interest paid on one loan (or a part of the loan) taken out for the construction or acquisition of one housing to bank and other credit institutions or funds and state financial institutions of foreign states included in the list by the Minister of Finance, where 50% of shares (or other participation) are held by governments of foreign states, as well as interest paid to a financial institution on the financial lease (leasing) of one housing;
- payments for vocational training or studies (where higher education and/or qualification are obtained upon graduation, and also for doctoral studies and art post-graduate studies) made by studying persons. Where payments for vocational training or studies are made from borrowed funds (a loan is taken out from a credit institution for such purpose), the repaid amount of the loan during the tax period may be deducted from income;

The total amount of the above-mentioned deductions shall not exceed 25% of the amount of taxable income.

A non-resident individual, who derives at least 90% of his gross income from Lithuanian sources in the tax year, may apply to the tax administrator for being recognized and treated as a Lithuanian resident for tax purposes. Such individual may exercise his right to deduct the above-mentioned expenses from income derived during the tax period.

10.1.1.2 Standard tax credits

There are no tax credits in Lithuanian individual income tax system (except of that providing for elimination of double taxation of income of the Lithuanian resident derived abroad).

10.1.2 Income tax schedule (central government income tax)

In 2010 the individual income tax is levied at 15% .

The basic and special tax-exempt amount was applied in 2010.

The basic tax-exempt amount (BTEA) consisted of LTL 470 and was applied not for each person. It belongs to the amount of person's income and is calculated as follows:

- 1) all BTEA (LTL 470) is applied to persons whose income related to labour relations was LTL 800 or less per month;
- 2) for a person whose income related to labour relations was more than LTL 800 per month BTEA is calculated according to the formula:
$$\text{BTEA} = 470 - 0.2 \times (\text{income of the prson related to labour relations} - 800).$$
 If the BTEA calculated according to this formula is negative, it is assumed to be equal to 0.

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An additional tax-exempt amount (ATEA) shall be applied to persons of Lithuania (parents or adoptive parents) who are raising children (adopted children) under 18 years of age and older, if they study at full-time general education schools, vocational or higher education schools (including the period of an academic leave of absence), but not longer than until they reach 24 years of age, in respect of each child (adopted child).

ATEA for the first child (adopted child) equals LTL 100, and for the second and next child (adopted child) – LTL 200.

During the tax period, the ATEA shall be applied by dividing the total amount of the ATEA equally between the parents (adoptive parents). If a person raises children (adopted children) alone, the whole amount of the ATEA is applied to him.

For example, an alone person earned LTL 2000 per month. So, BTEA of LTL 230 was applied to him ($470 - 0.2 \times (2000 - 800) = 230$); a person, who raised 1 child, earned per month LTL 2000. So, basic and special tax-exempt amount of LTL 330 ($230 + 100$) was applied to him (if he is only one earner in the family); a person, who raised 2 children, earned LTL 2000 per month. So, basic and special tax-exempt amount of LTL 530 ($230 + 100 + 200$) was applied to him (if he is only one earner in the family) and LTL 380 ($230 + 50 + 100$), if both parents had income related to labour relations.

10.1.3. State and local income taxes

There are no local income taxes in Lithuania.

10.2 Treatment of family income

There are no special rules for the taxation of family units. The income of spouses is taxed separately.

But there are some provisions according to which the right to deduct certain items can be shared or transferred between spouses, e.g. additional personal allowance for children, life insurance and pension contributions paid for the benefit of the taxpayer's spouse or minor children (adopted children). Where a studying resident of Lithuania is not an income taxpayer or has no possibility to exercise his right to deduct payments for vocational training or studies from his income, such expenses may be deducted by his parents (adoptive parents) or guardians as well as his sister, brother and/or spouse (cohabitant) from their income.

10.3 Social security contributions and payroll taxes

State social insurance in Lithuania is financed with contributions of employers and the insured persons. These contributions are paid into the State Social Insurance Fund budget which is independent from State and municipal budgets. Part of the funds from the State Social Insurance Fund budget is deducted to the Employment Fund administered by Labour Exchanges and to the Compulsory State Health Insurance Fund administered by the State and Territorial Patent Offices.

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From 2000 the general rate of the compulsory state social insurance contributions and its amounts for different types of insurance is fixed by the Seimas when ratifying the Law on Approval of the Report on the State Social Insurance Fund Budget Indicators of a respective year.

10.3.1 Contributions payable by employees and benefit recipients

Pursuant to the Law on Approval of 2008 Indicators of the State Social Insurance Fund Budget all and any insured persons shall be subject to payment of the state social insurance contributions according to tariff of 3 % in 2008, of which: 2.5% for pension insurance and 0.5 % – for sickness and maternity social insurance. A new compulsory employee's contribution to health security of 6% was approved since 1 January, 2009.

10.3.2 Contributions payable by employers

Pursuant to the Law on Approval of 2008 Indicators of the State Social Insurance Fund Budget, the gross 30.7 % tariff has been approved for the insurers' old-age pension, health, sickness, maternity and unemployment state social insurance contributions. The aforementioned Law has also ratified three categories of occupational injuries and occupational disease social insurance contributions, as well as tariffs of such occupational injuries and occupational disease social insurance contributions payable by the insurers ascribed to such categories: Category I – 1.0 %; Category II – 0.41 %; Category III – 0.28 %.

The resolution passed by the State Social Insurance Fund Board, approved the lists of insurers ascribed to Categories I and II of the Occupational Injury and Occupational Disease Social Insurance Contribution Tariffs. The abovementioned lists have been published in the Official Gazette.

The overall tariff for the insurers ascribed to Category I of the Occupational Injury and Occupational Disease Social Insurance Contribution Tariffs shall amount to 31.7 %.

The overall tariff for the insurers ascribed to Category II of the Occupational Injury and Occupational Disease Social Insurance Contribution Tariffs shall be 31.11 %.

The insurers, not listed in Categories I or II, shall be ascribed to Category III of the Occupational Injury and Occupational Disease Social Insurance Contribution Tariffs with the overall tariff for the insurers being 30.98 %.

The insurers who start their activities in 2008 shall pay state social insurance contributions under the tariffs set for the Category III of the Occupational Injury and Occupational Disease Social Insurance Contribution Tariffs.

After consultations with the Ministry of Social Security and Labour in calculations of net earnings the rate of employer's social contributions of 31.1 per cent was used.

10.3.3 Payroll taxes

State social insurance in Lithuania is financed with contributions of employers and the insured persons. These contributions are paid into the State Social Insurance Fund budget which is independent from State and municipal budgets. Part of the funds from the State Social Insurance Fund budget is deducted to the Employment Fund administered by Labour Exchanges and to the Compulsory State Health Insurance Fund administered by the State and Territorial Patent Offices.

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From 2000 the general rate of the compulsory state social insurance contributions and its amounts for different types of insurance is fixed by the Seimas when ratifying the Law on Approval of the Report on the State Social Insurance Fund Budget Indicators of a respective year.

10.4 Treatment of particular group

10.4.1 Young persons

There are no special rules for social contributions of young persons.

10.4.2 Older workers

There are no special rules for social contributions of older workers.

10.4.3 Others if applicable

There are no special rules for social contributions of immigrants, self-employed, sick or disabled, pensioners.

10.4.1 Young persons

There are no special taxation rules for income of young persons.

10.4.2 Older workers

There are no special taxation rules for income of older workers.

10.4.3 Others if applicable

[e.g. immigrants, self-employed, sick or disabled, pensioners]

A special basic personal allowance of LTL 420 (EUR 121.6) per month is granted to disabled taxpayers whose capacity for work has been rated at 30-40% (including the disabled in group II – until 30 June 2007) and LTL 475 (EUR 137.6) per month is granted to seriously disabled taxpayers whose capacity to work has been rated at 0-25% (also the disabled in group I – until 30 June 2007).

Business and professional income earned by an individual from independent activities, without having registered a commercial enterprise, is taxed on a gross basis at a rate of 15%. Alternatively, an individual may choose to be taxed on his business and professional income on a net basis at a rate of 24%. In the latter case, the allowable deductions include expenses incurred in the ordinary course of business. The amount of deductions may not exceed the income during the tax year.

An individual may also be taxed at a fixed amount of income tax by obtaining a business certificate for pursuing certain types of independent activities. The list of individual activities exercised under a business certificate are listed by the Government and include, for example, private accommodation services, barber and beauty shop activities, handicraft works and translation work. Income derived from certain business activity defined by the Government is

subject to the fixed amount of income tax (acquisition of business certificate) which is determined by municipality councils. A fixed amount of income tax shall be paid before a business certificate is issued.

From 1 July 2008 a fixed amount of income tax on income derived from activities exercised with a business certificate can not be less than the amount of income tax by person who draws minimum wage, except for the cases explicitly stated in the law.

11. Part-time work

There are no special tax rules for part-time work. The same social security contribution rules as for full-time workers.

11.1 *Special benefit rules for part-time work*

11.2 *Special tax and social security contribution rules for part-time work*

12. Policy developments

In order for the assistance to be as targeted as possible and able to perform its main function, i.e. to help families bring up children, guarantee minimum income for the poor residents, it is continued to developing the state social assistance system, improving legal base and increasing amounts of benefits.

12.1 *Policy changes introduced: 2nd July 2009 – 1st July 2010*

For the period from 2010-01-01 till 2011-12-31 according to temporary law (Law on the Recalculated and Paid Social Benefits) maximum unemployment social insurance benefit consist of LTL 650.

For the period from 2010-01-01 till 2011-12-31 according to the temporary law (Law on the Recalculated and Paid Social Benefit):

For those raising (fostering) one or two children:

- Every child, raised in a family or placed under guardianship in a foster family aged 0-2 years, if Maternity/Paternity benefit is not paid to the parent or guardian, or if the amount of Maternity/Paternity benefit is less than 1.5 times the amount of the SSI (LTL 525 (€ 152)), receives a monthly benefit of 0.75 BSB (LTL 97,5).
- Every child raised in a family or placed under guardianship in a foster family aged 2-7 years, receives a monthly benefit of 0.4 BSB (LTL 52), if the monthly income per family member is less than 1,5 times the amount of the SSI (LTL 525).

For those raising (fostering) three and more children:

- Every child, raised in a family or placed under guardianship in a foster family aged 0-2 years, if Maternity/Paternity is not paid to the parent or guardian, or if the amount of Maternity/Paternity benefit is less than 1.5 times the amount of the SSI (LTL 525), receives a monthly benefit of 0.75 BSB (LTL 97,5).

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- Every child raised in a family or placed under guardianship in a foster family aged 2-18 years, receives a monthly benefit of 0.4 BSB (LTL 52), if the monthly income per family member is less than 1,5 times the amount of the SSI (LTL 525).

Since 2010 the amount of a sickness allowance paid with the State Social Insurance Fund resources shall make up **40 per** cent of the reimbursed remuneration of the allowance beneficiary from the third day through the seventh day of the temporary incapacity for work, and 80 per cent of the said remuneration starting from the eighth day of the temporary incapacity for work.

The amount of a sickness allowance paid with the State Social Insurance Fund resources shall make up 85 per cent of the reimbursed remuneration of the allowance beneficiary for nursing a sick family member or looking after a sick child.

From 2010-07-01 The amount of a maternity (paternity) allowance from the end of a maternity leave until the child turns 1 year old shall make up 90 per cent, and until the child turns 2 years old – 75 per cent of the allowance beneficiary's reimbursed remuneration.

Reimbursed remuneration for calculation of allowances may not exceed the sum of the fivefold amount of the insured income approved by the Government for the current year, which was valid in the month of acquisition of the entitlement to an appropriate allowance.

Since 2010-01-01 the annual Insured Income was reduced and consisted of LTL 1170.

The individual income tax rate, the basic and special tax-exempt amount, social insurance contributions were applied in 2009 and in 2010 have stayed the same.

12.2 Future policy changes announced since 1st July 2009

Maternity leave, paternity leave or childcare leave. Changes from 1 July 2011

The Reimbursed Remuneration

Before 1 July 2011: The reimbursed remuneration on the basis whereof the amount of maternity, paternity and maternity (paternity) allowances are determined shall be calculated according to the insured person's insured income during **twelve consecutive calendar months** before the month preceding the month in which a maternity leave, paternity leave or child care leave began.

After 1 July 2011: The reimbursed remuneration on the basis whereof the amount of maternity, paternity and maternity (paternity) allowances are determined shall be calculated according to the insured person's insured income possessed during **twenty four consecutive calendar months** before the calendar month preceding the month in which a maternity leave, paternity leave or childcare leave

Amount of a Maternity Allowance Paid during a Maternity Leave Period

Before 1 July 2011: The amount of a maternity allowance during a maternity leave period shall make 100 per cent of the allowance beneficiary's reimbursed remuneration. The amount of the allowance per month may not be lower than one-third of the current year's insured income valid in the month of the beginning of the maternity leave. If more than one child is born, the

maternity allowance shall be increased taking into account the number of children born at the same time (twice if twins are born, three times in the case of triplets, etc.)

After 1 July 2011: The amount of a maternity allowance during a maternity leave period shall make 100 per cent of the allowance beneficiary's reimbursed remuneration. The amount of the allowance per month may not be lower than one-third of the current year's insured income valid in the month of the beginning of the maternity leave.

Maternity (Paternity) Allowance Payment and duration during a Childcare Leave Period

Before 1 July 2011: A maternity (paternity) allowance shall be paid for the period of a childcare leave after the end of a maternity leave until the child reaches the age of **two years**.

After 1 July 2011: A maternity (paternity) allowance shall be paid for the period of a childcare leave after the end of a maternity leave until the child **is one or two years old**.

Before 1 July 2011: The amount of a maternity (paternity) allowance from the end of a maternity leave until the child turns 1 year old shall make up 90 per cent, and until the child turns 2 years old – 75 per cent of the allowance beneficiary's reimbursed remuneration.

After 1 July 2011: The amount of a maternity (paternity) allowance from the end of a maternity leave until the child turns 1 year old shall make up 100 per cent of the allowance beneficiary's reimbursed remuneration, if the insured person chooses to receive this allowance until the child turns one year old. If the insured person chooses to receive a maternity (paternity) allowance until the child turns two years old, the amount of the said allowance from the end of a maternity leave until the child turns one year old shall make up **70 per cent** of the allowance beneficiary's reimbursed remuneration and until the child turns two years old – **40 per cent** of the allowance beneficiary's reimbursed remuneration. The amount of a maternity (paternity) allowance per month shall not be less than one third of the current year's insured income valid at the beginning month of a childcare leave.

Before 1 July 2011: When two or more children are born to the insured person and the person is on the childcare leave, the maternity (paternity) allowance shall be increased taking into account the number of children born simultaneously (twice, if twins are born, three times, if triplets are born, etc.).

After 1 July 2011: When two or more children are born to the insured person and the person is on the childcare leave, the maternity (paternity) allowance shall be increased taking into account the number of children born simultaneously, however the sum total of the paid allowances may not exceed 100 per cent of the allowance beneficiary's reimbursed remuneration.

Before 1 July 2011: If the insured person who has been or is on childcare leave possesses insurable income the amount whereof is less than a maternity (paternity) allowance (the sum total of these allowances), she/he shall be paid the difference of this allowance (the sum total of these allowances) and the insurable amount held by her/him in the appropriate month.

After 1 July 2011: If the insured person who has been or is on childcare leave **until the child turns one year old** possesses insurable income the amount whereof is less than a maternity (paternity) allowance (the sum total of these allowances), she/he shall be paid the difference of this allowance (the sum total of these allowances) and the insurable income held by her/him in the appropriate month.

ANNEX

DEFINITION OF SOCIAL SECURITY CONTRIBUTIONS AND PAYROLL TAXES.

The following text has been adapted from Annex A of the OECD *Revenue Statistics*.

Social security contributions to general government

Classified here are all compulsory payments that confer an entitlement to receive a (contingent) future social benefit. Such payments are usually earmarked to finance social benefits and are often paid to institutions of general government that provide such benefits. However, such earmarking is not part of the definition of social security contributions and is not required for a tax to be classified here. However, conferment of an entitlement is required for a tax to be classified under this heading. So, levies on income or payroll that are earmarked for social security funds but do not confer an entitlement to benefit are excluded from this heading and shown under personal income taxes or taxes on payroll and workforce. Taxes on other bases, such as goods and services, which are earmarked for social security benefits are not shown here [...] because they generally confer no entitlement to social security benefits.

Contributions for the following types of social security benefits would, *inter alia*, be included: unemployment insurance benefits and supplements, accident, injury and sickness benefits, old-age, disability and survivors' pensions, family allowances, reimbursements for medical and hospital expenses or provision of hospital or medical services. Contributions may be levied on both employees and employers.

Social security contributions paid to institutions outside general government

Contributions to social insurance schemes which are not institutions of general government and to other types of insurance schemes, provident funds, pension funds, friendly societies or other saving schemes [are included here if they are compulsory or quasicompulsory (e.g., by virtue of agreement with professional and union organisations)]. Provident funds are arrangements under which the contributions of each employee and of the corresponding employer on his/her behalf are kept in a separate account earning interest and withdrawable under specific circumstances. Pension funds are separately organised schemes negotiated between employees and employers and carry provisions for different contributions and benefits, sometimes more directly tied to salary levels and length of service than under social security schemes.

Reference date for all information is **July 1st 2010**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

Payroll taxes

This heading covers taxes paid by employers or employees either as a proportion of payroll or as a fixed amount per person, and which do not confer entitlement to social benefits. Examples of taxes classified here are the United Kingdom national insurance surcharge (introduced in 1977), the Swedish payroll tax (1969-1979), and the Austrian Contribution to the Family Burden Equalisation Fund and Community Tax.